

STATE OF NEW YORK

7585--A

2025-2026 Regular Sessions

IN SENATE

April 23, 2025

Introduced by Sens. CLEARE, JACKSON -- read twice and ordered printed, and when printed to be committed to the Committee on Consumer Protection -- recommitted to the Committee on Consumer Protection in accordance with Senate Rule 6, sec. 8 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the general business law, in relation to authorizing owners of mobile barber shops to obtain barber shop owner's licenses

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Section 430 of the general business law, as added by chapter 801 of the laws of 1946, is amended to read as follows:

2 § 430. Purpose of article. The need for technical skill, training and
3 experience, good health, good moral character and other fundamental
4 qualities and qualifications in persons engaged in the practice of
5 barbering, as herein defined, having been unquestionably established and
6 demonstrated and in order to safeguard the health of the persons who
7 patronize the barber shops of our state [~~and because of the evils~~
8 ~~connected with itinerant barbers and barber shops and because of the~~
9 ~~inadequacy of local regulation, it~~]. It is the purpose of the legisla-
10 ture, in enacting this article, to safeguard and protect the barbers of
11 this state [~~from the evils of itinerant barbers and barber shops~~] and to
12 safeguard and protect the lives, health and well being of those persons
13 who patronize the barber shops of our state by making adequate provision
14 for the examination, licensing and regulation of the barber shops and
15 the barbers and apprentices to whom such persons submit themselves for
16 barber work.

17 § 2. Subdivision 2 of section 438 of the general business law, as
18 added by chapter 801 of the laws of 1946, is amended to read as follows:

19 2. [~~The establishment of itinerant shops is hereby prohibited and the~~
20 ~~maintenance of a bona fide establishment with a permanent and definite~~
21

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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~~location shall be a prerequisite for the issuance of a barber shop owner's license]~~ An applicant may obtain a barber shop owner's license to operate a mobile barber shop provided that such applicant can demonstrate:

(a) proof of title and possession, or lease and possession, of the vehicle to be used to operate the mobile barber shop;

(b) proof of valid vehicle registration with the department of motor vehicles for the vehicle to be used to operate the mobile barber shop;

(c) proof of valid New York driver's license which authorizes the driver to operate a vehicle of the class of the vehicle to be used to operate the mobile barber shop;

(d) proof of proper layout as determined by the department;

(e) proof that any equipment or tools used by any mobile barber shop are appropriately maintained and meet all health, safety and sanitary requirements of applicable local and state laws, rules and regulations;

(f) proof that such mobile barber shop vehicle is in compliance with appropriate local and state laws, rules and regulations; and

(g) satisfactory evidence of good moral character pursuant to subdivision three of this section.

§ 3. This act shall take effect immediately.